

## **Common Questions for the Coroner's Office from SA that Muslims ask.**

### **When a death occurs at home.**

#### *Does the Coroner's Office (CO) need to be called? What does the CO do in these circumstances?*

When a death occurs at home, the first person to find the deceased person must call emergency service 000. That will lead to police attendance. The police will then assess the scene, get witness statements, and complete a formal ID. The Police then reports the death to the coroner. The police would generally advise family to contact the coroner's office to speak to a social worker about what is going on in relation to the death. The police would also contact the GP of the deceased person to get the GP's opinion on whether they know a cause of death.

The police report of death is presented to the Coroner. The Coroner then reviews the report and decides on one of the following directions. Each individual case is unique and the Coroner treats death reports uniquely on case by case basis.

1. *Body of the deceased person released to funeral director without further examination or enquires:*

The Coroner accepts a cause of death based on the information the police received from the GP and releases the deceased to the nominated funeral director. In such circumstance, the death has been accepted as reportable to the Coroner and the family need to appoint a funeral director to whom the coroner can release the deceased. The same process applies to hospital and nursing home reports. Reports may also come from funeral directors or Birth Death and Marriages, for example, death certificate enquires when cause of death is viewed as reportable to the Coroner.

2. *Undetermined Natural Causes:*

Under the amended Coroner's Act (2020), The Coroner offers UNC (Undetermined Natural Cause) to family, meaning the death is of natural causes, but without further enquiries/examinations, a precise cause of death cannot be given. A social worker in the Coroner's office will contact the family and provide the Coroner's offer of the UNC in writing to the Senior Next of kin. The Senior Next of Kin is required to give written consent for the UNC offer. The Senior Next of Kin can decline the offer of UNC. The Coroner will then direct for a review of medical records or an autopsy to determine a cause of death.

3. *Pathology Review:*

The Coroner directs a pathology review to attempt to determine a cause of death. The Coroner will direct all institutions, such as hospitals, nursing homes and medical clinics where the deceased has been treated in the last 2 years. These institutions are directed to send medical notes to the forensic science SA for a pathologist to review them and to recommend a cause of death to the Coroner. At



times, when a cause cannot be determined by the pathologist, further examinations such as autopsy may be requested.

#### **4. Post Mortem (autopsy):**

The Coroner directs an autopsy (It can be full autopsy or limited autopsy or External CT scan with toxicology tests). This involves the deceased person being brought to Forensic Science of South Australia where a pathologist examines the body, depending on the type of autopsy the Coroner directed.

A social worker at the Coroner's court is the primary contact person for the family of the deceased. The first task of a social worker is to determine who the Senior Next of Kin is, before providing any information.

#### **When a death occurs as a result of an accident:**

##### Does the family / anyone need to call the CO?

Like a death at home, the first person to find the deceased person, must call emergency services on 000. The South Australian Ambulance Service and Police will respond to the call. If required, the person will be transported to hospital for treatment. If the person is declared deceased at the scene police will facilitate the transfer of deceased to forensic Sciences SA.

In the case of a motor vehicle accident, the Major Crash Investigation section of police are responsible for reporting the death to the Coroner. The Coroner's direction scenarios are same as death at home.

#### **When a body is transported from another country:**

##### Does the Coroner's Office get involved?

Yes, if the body of the deceased arrives in the jurisdiction of a State Coroner in Australia, whether already deceased or died after arriving, that State Coroner is required by law to attempt to determine a cause of death.

Police will be contacted and will play a vital role in gathering all important information for the Coroner to consider, including liaising with Interpol and other Commonwealth jurisdictions.

In summary, if a doctor is unable to provide a cause of death, the deceased must be reported to the coroner. In the community, this report comes from the police. If the deceased was in hospital or a resident of a nursing home, the report to the coroner will come from the hospital or the nursing home.

#### **When a body is transported to another country (repatriated):**

##### Should the CO be informed?



If the death is accepted as reportable to the Coroner, the funeral director facilitating the transfer of the body to another country will seek a repatriation letter from the Coroner's office and also a non-communicable disease letter from Forensic Science SA. This will allow airlines to accept to transport the deceased on their plane.

If the death was not accepted as reportable death and doctor has issued a death certificate, the Coroner's court does not get involved.

*Does the Coroner's Office act in an advisory capacity?*

A senior next of kin of a deceased person can always contact a social worker at the Coroner's office for brief counseling, referral and advise about the coronial process.

*Does the Coroner's Office direct the process that needs to be followed?*

The family of the deceased person's most important responsibility is to choose and hire a funeral director. The funeral directors will guide the family on the process and they know who to call for what they need. They will call the Coroner's office for anything they need from the Coroner's office. The family (Senior Next of Kin) can always have a conversation with a social worker at the Coroner's office.

**When a body is completely disfigured (e.g. in an accident).**

*Does the Coroner's Office assist in identifying it – how is this done?*

If a deceased person is 'non-visual' meaning the deceased person has change in appearance, disfigured, and cannot be visually identified, the police section of the Coroner's Court will guide the investigating officers on what to do to complete a non-visual Identification (ID), if the death was reported by the police. The family of the deceased are required to collaborate with police and provide information such as dental records, documents of the deceased, such as their passport or driver license or car registration of the deceased. With that information, the police can also seek access to DNA or fingerprint samples to complete a non-visual ID. Family are not required to physically view the deceased person to complete non-visual identification of the deceased.

All motor vehicle related deaths must be reported to the Coroner by police and therefore if the deceased is deemed non-visual, the non-visual ID process will occur.

**Does the Coroner's Office get involved in major catastrophes e.g. earthquakes, other disasters?**

*What role does the Coroner's Office play in these instances?*

All death relating to major catastrophes are reportable to the Coroner. As part of the Social Worker's role in the Coroner's office is participating with other key agencies and personnel in responding to disaster and emergency events involving multiple fatalities.



Identification of the deceased and determination of cause of death is the role of the Coroner in such circumstance.

### **Disaster Victim Identification.**

DVI (Disaster Victim Identification) is the process of recovery and identification of human remains and property relating to a multiple person fatality incident.

A DVI incident is a multiple fatality incident, either due to natural events or man-made incidents, where the State DVI Commander declares the DVI process to be evoked to formally identify and repatriate the deceased persons.

In South Australia, a multiple fatality incident is considered a DVI incident where there are 5 or more fatalities.

All deaths must be reported to the Coroner under the Coroners Act 2003.

### **DVI PHASES**

There are different phases of a DVI incident, in which different personnel and different agencies have roles to play. These phases can be as follows, and can include the following resources:

|                          |                                                            |
|--------------------------|------------------------------------------------------------|
| 1 <sup>st</sup> on scene | Ambulance Services                                         |
|                          | Metro and Country Fire Services                            |
|                          | Major Hospitals A&E Departments                            |
| Logistic Groups          | Conveyancing, Funeral Directors                            |
|                          | State Supplies, IT Services, Communications, food supplies |
|                          | Ante Mortem Phase Police, Social Workers                   |
| Post Mortem Phase        | Pathologists, Odontologists, Forensic Police               |
| Reconciliation           | Coroner, Forensic Staff                                    |
| Repatriation             | Funeral Directors, Births Deaths & Marriages               |

### **CORONIAL SOCIAL WORK INVOLVEMENT IN THE DVI PROCESS**

Social Workers are required to team up with DVI trained SAPOL Officers and go with them, in SAPOL cars, to the homes of the next of kin. At this stage very little information may be available regarding the disaster.

Next of Kin generally have had the news of death(s) given to them by SAPOL, so they are aware of the death.



SAPOL role is to gather ante mortem material for identification purposes, such as hair and toothbrushes belonging to the deceased persons. They will also take DNA from immediate family members by way of a buccal swab (a cottonwool swab is scraped along the inside of the mouth in the cheek region).

The SAPOL officers have a list of questions relating to the deceased's physical characteristics which they have to ask and record.

During this process it is useful for the Social Worker to support family members so the Senior Next of Kin in order of priority can be determined and support and information to the family of the deceased is provided through the Senior Next of Kin.

1. Wife/partner
2. Adult child
3. Parents
4. Siblings
5. Cousin or grandchild/parent and such other biological relatives
6. Executor of the Will or administrator

#### **When a body is examined.**

##### What samples are taken?

**What is taken depends on the pathologist and at what stage they find a cause of death.**

- Full post mortem - the pathologist examines the body externally and internally.
- Limited post mortem - for examinations limited to a specific region of the body, the pathologist performs surgery and examines that part only.
- External post mortems and toxicology - the pathologist uses a scanning machine (CT scan) to scan the body of the deceased. No surgery required; however blood samples are taken for the toxicology tests.
- If a full post mortem does not assist with determining a cause of death and the pathologist finds a useful lead that indicates further examination of an organ will help to determine a cause of death, the pathologist request for the coroner's authorisation to remove and test the organ such as brain, heart, spinal cord etc.

##### Are organs removed; If so, then can the family request it to be returned with the body (for Islamic Burial)?

Yes, the Senior next of Kin has 4 options to choose from when an organ is retained.

1. Return organ to body before release.
2. Release body without organ but send the organ to the FD for burial or cremation when the tests are complete.
3. Release the body without the organ and permit the pathologist to dispose of the organ according to normal hospital protocols.



4. Release the body without the organ and donate the organ to forensic science SA for scientific use.

The Senior next of Kin has an opportunity to write to the Coroner to object to the organ removal for testing because of religion and/or culture. The Coroner will consider all objections however, it is likely the Coroner will proceed with the examination requests as the pathologist has recommended the testing on the organ will help determine a cause of death.

#### Under what circumstances will organs be removed?

Organs are retained for testing only if a full autopsy cannot help to determine a cause of death and the pathologist identifies an organ as a potential source of information to help with determining a cause of death.

#### What happens to body parts / samples taken during examinations?

Depending on what the pathologist has recommended, body parts, or organs, can include but are not limited to the brain, eyes, heart, spinal cord etc. Samples can be taken from anywhere the pathologist deems important.

The Forensic Science SA keeps samples and tissues taken during post mortem and they will dispose of after a couple of years when no longer needed however, the Senior Next of Kin can consent under the transplantation and anatomy Act 1983 for the tissues and samples to be used by the forensic Science SA for control sample. Control samples are an important part of quality control and assurance procedures that forensic scientists use to eliminate the inaccuracy of laboratory or test results.

#### How long do examinations take?

The organ retention process may take 3 to 5 weeks depending on the organ needing to be examined. Specific time frames will be discussed with Senior Next of Kin at time of organ retention being directed.

*Is there a way in which we can request these examinations happen as quickly as possible considering the Islamic Principle of burying the dead as soon as possible?*

Timeframes for completing organ retention is the same for all families, regardless of religion or culture.

As mentioned above, families have an opportunity to request the Coroner to not go ahead with the organ retention process citing religious or cultural reasons. The Coroner will consider these requests and ask the pathologist if they (pathologists) can find alternative way to determine a cause of death.

The Coroner can decline the family's request and this decision is a judicial decision and can only be challenged in supreme Court.





**Can Muslim families request for same gender(s) as the deceased to perform the autopsy? If possible, then who do we need to contact?**

Yes, the Senior Next of Kin can write to the Coroner to request for the same gender pathologist to do an autopsy. This request will be determined by staffing. All requests will be considered. This may cause delay if no same gender pathologist is available on the day of the post mortem.

Families can contact the Coroner's Office to express their concern or request for anything in writing by sending an email to [coroner@courts.sa.gov.au](mailto:coroner@courts.sa.gov.au) or call to speak to Social Worker on 8204 0600.